

		Plaintiff has not addressed any undertaking. The Court will hear from Plaintiff and Defendants as to any required undertaking as set forth in California Rules of Court, rule 3.1178. Moving party to give notice.
11.	30-2023-01356430 Orellana vs. JW Marriott Anaheim Resort	1. Case Management Conference 2. Motion for Summary Judgment and/or Adjudication Defendant W.E. O’Neil Construction Co. of California moves for summary judgment or adjudication as to Plaintiff’s first cause of action for general negligence and second cause of action for premise liability. Defendant W.E. O’Neil Construction Co. of California moves for summary judgment or adjudication as to Plaintiff’s first cause of action for general negligence and second cause of action for premise liability. 1. FIRST CAUSE OF ACTION FOR NEGLIGENCE The “elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury.” (<i>Gonzalez v. Interstate Cleaning Corp.</i> (2024) 106 Cal.App.5th 1026, 1034, as modified (Nov. 21, 2024).) “[W]hen a contractor completes work that is accepted by the owner, the contractor is not liable to third parties injured as a result of the condition of the work, even if the contractor was negligent in performing the contract, unless the defect in the work was latent or concealed.” (<i>Neiman v. Leo A. Daly Co.</i> (2012) 210 Cal.App.4th 962, 969, as modified (Nov. 14, 2012) [citing <i>Jones v. P.S. Development Co., Inc.</i> (2008) 166 Cal.App.4th 707, 712, 82 Cal.Rptr.3d 882 [Jones], disapproved on another ground in <i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512, 532, fn. 7, 113 Cal.Rptr.3d 327, 235 P.3d 988; <i>Sanchez v. Swinerton & Walberg Co.</i> (1996) 47 Cal.App.4th 1461, 1466–1471, 55 Cal.Rptr.2d 415 [Sanchez].) This is referred to as the completed work doctrine. “The rationale for this doctrine is that an owner has a duty to inspect the work and ascertain its safety, and thus the owner’s acceptance of the work shifts liability for its safety to the owner, provided that a reasonable inspection would disclose the defect. [Citation.]” (<i>Ibid.</i>) Stated another way, “when the owner has accepted a structure from the contractor, the owner’s failure to attempt to remedy an obviously dangerous defect is an intervening cause for which the contractor is not liable.” (<i>Neiman v. Leo A. Daly Co.</i> (2012) 210 Cal.App.4th 962, 969, as modified (Nov. 14, 2012).) “The doctrine applies to patent defects, but not latent defects.” (<i>Neiman v. Leo A. Daly Co.</i> (2012) 210 Cal.App.4th 962, 969, as modified (Nov. 14, 2012).) “If an owner, fulfilling the duty of inspection, cannot discover the defect, then the owner cannot effectively represent to the world that the construction is sufficient; he lacks adequate information to do so.” (<i>Ibid.</i>) Whether a cause of action based on a construction defect is time barred depends on whether the defect is patent or latent. A patent defect is one that is “apparent by reasonable inspection” (Code Civ. Proc., § 337.1, subd. (e)), while a latent defect is one that “is not apparent by reasonable inspection” (Code Civ. Proc., § 337.15, subd. (b)). “ ‘The test to

determine whether a construction defect is patent is an objective test that asks “whether the average consumer, during the course of a reasonable inspection, would discover the defect....” [Citations.] This test generally presents a question of fact, unless the defect is obvious in the context of common experience; then a determination of patent defect may be made as a matter of law (including on summary judgment). [Citations.]’ [Citations.]” (*Delon Hampton & Associates, Chartered v. Superior Court* (2014) 227 Cal.App.4th 250, 255 (*Delon*); accord *Tomko Woll Group Architects, Inc. v. Superior Court* (1996) 46 Cal.App.4th 1326, 1338-1339 [nature of defect can be question of law].)

Here, the Court finds that the defect at issue is a patent defect that an average consumer, during the course of a reasonable inspection, would discover. As Defendant correctly points out, Plaintiff’s expert testified that the defect at issue is a patent defect. Plaintiff’s expert testifies:

“From an engineering and human factors perspective, a condition such as a shower door that does not open freely is readily detectable through even the most basic of inspections. A simple act of opening and closing the door by anyone tasked to look for door hinge resistance would reveal whether the hinge operated smoothly or whether resistance or binding was present. Such a condition requires no specialized training or tools to identify.” (Burns Decl., ¶ 11.)

Moreover, Defendant provides evidence, and Plaintiff does not dispute, that “[f]ollowing installation, W.E. O’Neil participated in walkthrough inspections of the guest room with multiple project stakeholders, including the design team, ownership representatives, and JW Marriott building engineers.” (Undisputed Fact No. 8.) Plaintiff also does not dispute that “[d]uring he walkthroughs, participants physically operated the shower glass doors and other fixtures.” (Undisputed Fact No. 9.) “W.E. O’Neil completed its work at the project in February 2020 and a Certificate of Occupancy was issued in February 2020.” (Undisputed Fact No. 16.)

Given the above, the Court finds that the completed work doctrine bars Defendant from being held liable by Plaintiff because, when a contractor completes work that is accepted by the owner and the defect at issue is a patent defect, the contractor is not liable to third parties injured as a result of the condition of the work, even if the contractor was negligent in performing the contract.”

The motion for summary adjudication is **GRANTED** as to the first cause of action for negligence.

2. SECOND CAUSE OF ACTION FOR PREMISE LIABILITY

To establish premises liability, Plaintiffs must allege: (1) that Defendants owned, leased, occupied, or controlled the premises; (2) that Defendants were negligent in the use or maintenance of the property; (3) that Plaintiffs suffered harm; and (4) that Defendants’ negligence was a substantial factor in causing the harm. (See CACI No. 1000; *Brooks v. Eugene Burger Mgmt. Corp.* (1989) 215 Cal.App.3d 1611, 1619.)

“Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises.” (*Gonzalez v. Interstate Cleaning Corp.* (2024) 106 Cal.App.5th 1026, 1034, *as modified* (Nov. 21, 2024).) “The crucial element is control.” (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1159.)

“In premises liability cases, summary judgment may properly be granted where a defendant unequivocally establishes its lack of ownership, possession, or control of the property alleged to be in a dangerous or defective condition.” (*Gray v. America West Airlines, Inc.* (1989) 209 Cal.App.3d 76, 81.) “This follows from the rule that the duty to take affirmative action for the protection of individuals coming onto one's property “is grounded in the possession of the premises and the attendant right to control and manage the premises.” (*Ibid.*) “Without the “crucial element” of control over the subject premises [citation], no duty to exercise reasonable care to prevent injury on such property can be found.” (*Id.* [internal citation omitted].)

Here, Defendant cannot be held liable for premise liability because the undisputed facts establish that Defendant did not “own, lease occupy, or control” the hotel room at issue at the time of the incident. In fact, “W.E. O’Neil completed its work at the project in February 2020 and a Certificate of Occupancy was issued in February 2020.” (Undisputed Fact No. 16.)

Plaintiff also admits that she has “no facts, witnesses or documents to support her claim for Premises Liability as to W.E. O’Neil.” (Undisputed Fact No. 16.)

In addition, in the body of the opposition, Plaintiff does not argue that she has a meritorious premise liability claim. Plaintiff only argues and presents legal authority as to her negligence claim.

The motion for summary adjudication as to the second cause of action for premise liability is **GRANTED**.

In sum, the Motion for Summary Judgment is **GRANTED in its entirety**.

Moving party to give notice.